



EMPLOYMENT TRIBUNALS

Claimant: David Kalungi

Respondent: Southern Wind Group Ltd

JUDGMENT

The claim is struck out because it has not been actively pursued.

REASONS

1. A preliminary hearing was listed for 26 March 2025.
2. In advance of the hearing, the respondent had attempted to contact the claimant but received no response.
3. The claimant did not attend the preliminary hearing.
4. EJ Singh postponed the hearing and gave orders for the claimant to write to the tribunal within the following seven days to explain his non-attendance. In that communication, EJ Singh highlighted that if the claim did not provide a sufficiently adequate explanation, the claimant risked his claim being struck out on the basis that it was not being actively pursued.
5. No response to this email was received by the claimant by the tribunal.
6. By letter of 24 July 2025, EJ Glennie informed the parties that he was considering striking out the claim on the grounds that it was not actively pursued. He gave the claimant a further opportunity to object to this by writing to the tribunal no later than 30 July 2025, copying in the respondent to any communication.
7. No response has been received by the tribunal or the respondent.
8. I therefore consider that the claim has not been actively pursued.
9. Furthermore, the tribunal has made several attempts to contact the claimant without receiving any response.
10. I therefore consider that it is appropriate in these circumstances to exercise my discretion to strike the claim out on the basis that it has not been actively pursued.

11. The claim is therefore struck out.

Employment Judge Baty

Date: 30 September 2025

JUDGMENT SENT TO THE PARTIES ON

7 November 2025

.....

.....
FOR THE TRIBUNAL OFFICE